CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FOURTH SECTION

DECISION

AS TO THE ADMISSIBILITY OF

Application no. 12282/02
by CÂRMUIREA SPIRITUALĂ A MUSULMANILOR DIN REPUBLICA MOLDOVA
against Moldova

The European Court of Human Rights (Fourth Section), sitting on 14 June 2005 as a Chamber composed of:

Sir Nicolas BRATZA, *President*,
Mr G. BONELLO,
Mr K. TRAJA,
Mr S. PAVLOVSCHI,
Mr L. GARLICKI,
Mrs L. MIJOVIĆ,
Mr J. ŠIKUTA, *judges*,
and Mr M. O'BOYLE, *Section Registrar*,

Having regard to the above application lodged on 15 December 2001,

Having deliberated, decides as follows:

THE FACTS

The applicant, Cârmuirea Spirituală a Musulmanilor din Republica Moldova, is an organisation of Muslims from the Republic of Moldova. They were represented before the Court by Mr S. Ostaf, a lawyer practising in Chişinău.

A. The circumstances of the case

The facts of the case, as submitted by the applicant, may be summarised as follows.

On 25 July 2000 several natural persons joined together to form the applicant organisation – Cârmuirea Spirituală a Musulmanilor din Republica Moldova – an organisation of Muslims with the goal of having the Muslim religion officially registered in Moldova and building a Mosque in the city of Chişinău. On the same date the organisation adopted its articles of association.

Pursuant to the Religious Denominations Act (see below), which requires religious denominations active in Moldovan territory to be recognised by means of a government decision, the applicant organisation applied for recognition on 6 September 2000.

On 18 September 2000 the Government replied that they needed more time in order to examine and observe the activity of the organisation.

On 25 October 2000 the applicant organisation lodged a new request with the Government.

On 29 November 2000 the applicant organisation brought an action against the Government seeking an order to oblige the Government to reply to their request and to register their religion.

On 12 February 2001 the Court of Appeal obliged the Government to give an answer to the applicant's request. It did not oblige the Government to register their religion. The applicant organisation appealed against this judgment.

On 30 May 2001 the Supreme Court of Justice upheld the applicant's appeal, quashed the judgment of 12 February 2001 and sent the case for re-examination to the Court of Appeal in a different formation of judges.

On 8 October 2001 the Court of Appeal decided that it could not oblige the Government to register the Muslim religion because the applicants had not submitted to the Government all the documents provided for in Articles 14 and 15 of the Religious Denominations Act (see below). The applicant appealed against this judgment.

On 24 April 2002 the Supreme Court of Justice upheld the judgment of the Court of Appeal, confirming that the applicant organisation had failed to submit to the Government a document setting out the fundamental principles of their religion. The Supreme Court also noted that the Government had informed the applicant organisation on several occasions that the documentation it had provided was incomplete, but the applicant failed to remedy this.

B. Relevant domestic law

The relevant provisions of the Religious Denominations Act (Law no. 979-XII of 24 March 1992) in force at the material time read as follows:

Section 1 – The freedom of conscience

Everyone has the right to freedom of thought, conscience and religion. This right must be manifested in a spirit of tolerance and mutual respect and it includes freedom to change his religion or belief and freedom, either alone or in community with others and in public or private, to manifest his religion or belief, in worship, teaching, practice and observance.

Freedom to manifest one's religion or beliefs shall be subject only to such limitations as are prescribed by law and are necessary in a democratic society in the interests of public safety, for the protection of public order, health or morals, or for the protection of the rights and freedoms of others.

...

Section 3 – The confessional freedom

No one can be forced to practice or not to practice the rites of a denomination...

...

Section 4 – The confessional intolerance

The confessional intolerance, manifested through acts which obstruct the freedom of a denomination recognised by the State, constitutes an offence and shall be punished in accordance with the law.

...

Section 9 – Religious denominations' freedom of organisation and operation

“Denominations shall be free to organise and operate freely on condition that their practices and rites do not contravene the Constitution, the present Act or the legislation in force.

Denominations that do not comply with this condition shall not qualify for State recognition.

...

Section 14 – Recognition of religious denominations

In order to be able to organise and operate, denominations must be recognised by means of a government decision.

Where a denomination fails to comply with the conditions laid down by the first paragraph of section 9 of the present Act, recognition may be withdrawn.

Section 15 – Articles of association

"To qualify for recognition, each denomination shall submit to the Government, for scrutiny and approval, the articles of association governing its organisation and operation. The articles of association must contain information on its system of organisation and administration and on the fundamental principles of its beliefs."

COMPLAINTS

The applicant organisation complained that the failure to register its denomination constituted a breach of Articles 9, 11 and 13 of the Convention. It also complained about a breach of Article 14 taken together with Articles 9 and 11 of the Convention.

THE LAW

1. The applicant organisation complains under Articles 9 and 11 of the Convention about the refusal to register their denomination.

Article 9 of the Convention insofar as relevant reads:

"1. Everyone has the right to freedom of thought, conscience and religion..."

Article 11 of the Convention insofar as relevant reads:

"1. Everyone has the right to freedom ... of association with others..."

The Court notes that the proceedings brought by the applicant against the Government were unsuccessful due to the applicant's failure to observe the registration procedure as provided for by the Religious Denominations Act. In particular, the domestic courts found that the applicant had failed to submit to the Government a document containing the fundamental principles of its religion.

The applicant does not complain, and the Court does not find, any indication that the law in question was unreasonable or arbitrarily applied against the applicant.

The Court considers that the requirement to obtain registration under the law in force at the material time served the legitimate aim of allowing the Government to ensure that the religious organisations aspiring to their official recognition by the State were acting in accordance with the law, did not present any danger for a democratic society and did not carry out any activity directed against the interests of public safety, public order, health, morals or the rights and freedoms of others.

The applicant organisation was denied registration due to its failure to present to the Government a document setting out the fundamental

principles of their religion. Without such a document the State could not determine the authenticity of the organisation seeking recognition as a religion and whether the denomination in question presented any danger for a democratic society. The Court does not consider that such a requirement is too onerous and thus disproportionate under Article 9 of the Convention.

In such circumstances, the failure properly to seize the domestic authorities amounts to non-exhaustion of domestic remedies.

It follows that this part of application must be rejected under Article 35 §§ 1 and 4 of the Convention for non-exhaustion of domestic remedies.

2. The applicant complains under Article 13 that it did not have effective domestic remedies.

Article 13 of the Convention provides as follows:

> "Everyone whose rights and freedoms as set forth in [the] Convention are violated shall have an effective remedy before a national authority notwithstanding that the violation has been committed by persons acting in an official capacity."

Having regard to the conclusions reached above in respect of the non-exhaustion of domestic remedies, this part of the application must be rejected as manifestly ill-founded, in accordance with Article 35 §§ 3 and 4 of the Convention.

3. Relying on Article 14 of the Convention taken together with Articles 9 and 11 of the Convention, the applicant submits that it has been discriminated against. Article 14 of the Convention provides:

> "The enjoyment of the rights and freedoms set forth in [the] Convention shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status."

The Court notes that in the present case the applicant has not substantiated its complaint under this Article. In particular, the applicant has not shown that the requirements of the Religious Denominations Act were applied more strictly to it in comparison with other religious organisations seeking recognition. Accordingly, this part of the application must be rejected as manifestly ill-founded, in accordance with Article 35 §§ 3 and 4 of the Convention.

For these reasons, the Court unanimously

Declares the application inadmissible.

Michael O'BOYLE
Registrar

Nicolas BRATZA
President